

Showing contexts for: **Bachan Singh** in [Bachan Singh Etc. Etc vs State Of Punjab Etc. Etc on 16 August, 1982](#)

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The reference has arisen in these circumstances:

Bachan Singh, appellant in Criminal Appeal No. 273 of 1979, was tried and convicted and sentenced to death under [Section 302](#), Indian Penal Code for the murders of Desa **Singh**, Durga Bai and Veeran Bai by the Sessions Judge. The High Court confirmed his death sentence and dismissed his appeal.

Bachan Singh's appeal by special leave, came up for hearing before a Bench of this Court (consisting of Sarkaria and Kailasam, JJ.). The only question for consideration in the appeal was, whether the facts found by the Courts below would be "special reasons" for awarding the death sentence as required under [Section 354\(3\)](#) of the Code of Criminal Procedure 1973.

Shri H.K. Puri, appearing as Amicus Curiae on behalf of the appellant, **Bachan Singh**, in Criminal Appeal No. 273 of 1979.

contended that in view of the ratio of [Rajendra Prasad v. State of U.P.](#),⁽¹⁾ the Courts below were not competent to impose the extreme penalty of death on the appellant. It was submitted that neither the circumstance that the appellant was previously convicted for murder and committed these murder after he had served out the life sentence in the earlier case, not the fact that these three murders were extremely heinous and inhuman, constitutes a "special reason" for imposing the death sentence within the meaning of [Section 354\(3\)](#) of the Code of Criminal Procedure 1973. Reliance for this argument was placed on [Rajendra Prasad](#) (ibid) which according to the counsel, was on facts very similar, if not identical, to that case.